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বাংলাদেশ সুপ্রীমকোর্ট

হাইকোর্ট বিভাগ

আপীল সম্পর্কিত

ফৌজদারী

জেলা: Pabna

498

ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনে রিভিশন
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Md. Suhad Ahmed

আবেদনকারী

মাধ্যম

Ms. Rawshan Ara, Advocate

বনাম

The State

Mr. Sujit Chatterjee, DAG with

Ms. Farhana Afroze Runa, A. A. G with

Mr. Abdul Aziz Masud, A. A. G. with

Md. Shamim Khan, A. A. G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দন্ডাদেশ

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

আপীল আদালত

তারিখ

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কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	<u>04.02.2024</u>	This application under Section 498 of the Code of Criminal Procedure at the instance of sole accused petitioner of G.R. Case No. 701 of 2023 under Section 7/9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000. It has been stated that the victim herself is the complainant of this case. She has stated that she had a love affair with accused petitioner who on assurance of marriage took the victim in a hotel at Cox's Bazar where the petitioner keeping the victim under his	

	control for 15(fifteen) days and established sexual relation. Ms. Rawshan Ara, learned Advocate for the petitioner submits that victim-opposite party has stated in the FIR that she is 19(nineteen) years of age. She has further stated that she gave consent to the relationship with the accused petitioner. The petitioner is a student of a private university and he is willing to marry the victim but his family is not accepting above marriage. The parties are trying to make a compromise of the matter and if the petitioner is granted an ad interim bail for a limited period then above compromise endeavor will be expedited and the petitioner will be able to continue his study. Mr. Sujit Chatterjee, learned Deputy Attorney General did not raise any objection against granting of the bail to the petitioner on condition that they would make a specific settlement of the dispute within a limited period of time. On consideration of facts and circumstances of this case and above submissions of the learned Advocates for the respective parties, we are inclined to grant ad interim bail to the petitioner for a limited period with condition that before expiry of above period of bail the learned Advocate for the petitioner shall submit a compliance on the basis of above assurance. Let a Rule be issued calling upon the opposite party to show cause as to why the accused-petitioner should not be enlarged on bail in Pabna Sadar Police Station Case No. 36 dated 13.11.2023 arising out of G. R. Case No. 701 of 2023 under sections 7/9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000, now
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		pending in the Court of learned Chief Judicial Magistrate, Pabna and/or pass such other or further order or orders as to this Court may seem fit and proper. The Rule is made returnable within 6(six) weeks from date. Pending disposal of the Rule, let the accused petitioner Md. Suhad Ahmed, son of late Kamal Ahmed @ Jamal Ahmed and Most. Tanjila Ahmed @ Satu be enlarged on ad-interim bail for a period of 06(six) months on condition that before expiry of above period of bail the petitioner shall submit a compliance as stated above and if he fails to do so no extension of above bail shall be granted. The petitioner shall also furnish a bail bond to the satisfaction of the Chief Judicial Magistrate, Pabna. The concern Court is at liberty to cancel the bail, if the accused-petitioner misuses the privilege of bail. The petitioner is directed to submit a compliance of the assurance as stated above failing which no further extension will be extended. Naher, B.O.
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দ্রষ্টব্যঃ কালো কালিতে অফিস নোটের একটি ক্রমিক নম্বর এবং লাল কালিতে কোর্টের আদেশের আরেকটি ক্রমিক নম্বর হইবে।

নং সপম (বাঃ বাঃ কোঃ)/ভেটিং/ফ-১১০/৮৫-৩৫৮৩